

21STCV03623 21STCV03623

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-07-15

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 15, 2026

CASE NUMBER

21STCV03623, related to 21STCV02841 and 21STCV03737

MOTION

Motion to Quash Subpoena; Request for Protective Order

MOVING PARTIES

Defendants Sweattheory LLC, Sweattheory Wellness, LLC, and
the Sweattheory Group, LLC

OPPOSING PARTIES

Defendant and Cross-Defendants Paragon Resources
Incorporated and Royfield, Inc.

MOTION

Defendants

Sweattheory LLC, Sweattheory Wellness, LLC, and the Sweattheory Group, LLC and Cross-Defendant JPL Ventures, LLC (collectively, "Defendants") move to quash deposition notices Defendants, Cross-Complainants, and Cross-Defendants Paragon Resources Incorporated ("Paragon") and Royfield, Inc. ("Royfield") served for the depositions on Defendants' persons most qualified to testify on specified topics and request a protective order. Paragon and Royfield oppose the motion.

ANALYSIS

Code of Civil Procedure section 2025.420

provides, in relevant part, "[t]he court, for good cause shown, may make any order that justice requires to protect any . . . deponent . . . from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense."

Defendants argue the depositions would be unduly burdensome. In support of this contention, Defendants were required to present evidence of "the quantum of work required" and to show "the ultimate effect of the burden is incommensurate with the result sought." (West Pico Furniture Co. of Los Angeles v. Superior Court In and For Los Angeles County (1961) 56 Cal.2d 407, 417.) This submission would include evidence of "the total man hours required to accomplish the task." (Ibid.) Defendants advance no such evidence.

Accordingly, the motion to quash and request for a protective order are denied.

Defendants' persons most qualified are to appear for the depositions within 30 days of the notice of the Court's order, unless the parties hereto otherwise agree to a different time. No sanctions will be imposed.

Defendants are to give notice of the Court's ruling and to file proof of service of same.